

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/01/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00114
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PASCAL ROYET
FOR ENTERING JUDGMENT PURSUANT TO DEF'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/36, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had served the Defendant with process through substitute service.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$6,087.72, less any credits for payments received, and plus costs.

Defendant made total payments in the amount of \$0; and costs are \$394.73, per the Declaration.

Thus, the judgment amount should be \$6,482.45.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,482.45.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-04586
CASE NAME: WELLS FARGO BANK, N.A. VS. RAFAEL VALLEJO
TO VACATE DISMISSAL UNDER C.C.P. 664.6 & ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$11,041.15, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$8,003.15.

Costs are \$445.